

When a motion to compel responses is filed, the court shall impose monetary sanctions against the losing party unless there was substantial justification. (Code Civ. Proc., §§ 2023.010, subd. (d), 2031.300, subd. (c).) The court may require a party who misuses the discovery process to "pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (*Id.*, § 2023.030, subd. (a).) Misuse of the discovery process includes failing to respond to discovery. (*Id.*, § 2023.010, subd. (d).)

Plaintiff is seeking sanctions in the amount of \$810 based on 2.5 hours of work by an attorney at \$300 an hour and \$60 in costs. Accordingly, Plaintiff's request for sanctions is granted. Defendant is ordered to pay \$810 in sanctions to Wild, Carter & Tipton within 30 days of the service of the minute order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/3/2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Thorpe-Ghazal v. Bell**
Superior Court Case No. 24CECG02613

Hearing Date: September 10, 2026 (Dept. 503)

Motion: By Defendant Bell to Lift the Stay

Tentative Ruling:

To deny, without prejudice.

To set the matter for a status conference on Thursday, February 4, 2027 at 3:30 p.m. in Department 503.

Plaintiff's counsel is to give counsel for defendant Bell notice of any orders from the arbitration proceedings within two days of receipt of such orders.

**If oral argument is timely requested, it will be entertained on
Thursday, September 17, 2026, at 3:30 p.m. in Department 503.**

Explanation:

On June 18, 2024, plaintiff filed a complaint against defendants Thomas Bell, Stanley Cooper, and RBC Capital Markets alleging fraud, breach of fiduciary duty, and professional negligence. On August 29, 2024, defendant Bell filed a cross-complaint for indemnity against Jim Miller.

On August 23, 2024, Bell filed his demurrer and motion to strike, with a hearing date of October 16, 2024. On September 4, 2024, defendants Cooper and RBC Capital Markets filed a motion to compel arbitration, with a hearing date of November 7, 2024.

On October 17, 2024, the court sustained Bell's demurrer and granted the motion to strike, both with leave to amend. The court noted that there were no allegations that plaintiff had relied on representations by Bell which could form a basis for applying the doctrine of equitable tolling. (Minute Order, October 17, 2024.) On October 25, 2024, plaintiff filed an amended complaint.

Shortly thereafter, on November 7, 2024, the court granted the motion to compel arbitration and stayed the matter pending arbitration.

Three months later, on February 5, 2025, Bell filed a motion to lift the stay as to the claims against him. On March 6, 2025, the court denied the motion. The court noted that while the stay had not been expressly sought, it was nevertheless warranted. (Minute Order, March 6, 2025.)

Now, one year and ten months after the order was made compelling plaintiff and defendants Cooper and RBC Capital Markets to arbitration, defendant Bell again seeks to lift the stay. Bell asserts that he has been diagnosed with a terminal illness and in a declaration dated May 28, 2026 he acknowledges that he has been told he has approximately one year to live. (Bell Decl., ¶ 13.) Plaintiff argues that the issues already subject to arbitration overlap here, that Bell's video deposition has been completed, and that arbitration has been set for January 18, 2027.

Code of Civil Procedure section 1281.4 provides for a stay of proceedings where the court has ordered parties to arbitration "until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." The purpose of staying the matter is to "protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved." (*MKJA, Inc. v. 123 Fit Franchising, LLC* (2011) 191 Cal.App.4th 643, 658, quoting *Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1374-1375.) Without the stay, there is a risk of disrupting arbitration proceedings and rendering them ineffective. (*Ibid.*)

The goal of arbitration is to provide a "'speedy and relatively inexpensive method of resolving disputes' without unduly prejudicing parties who have not agreed to arbitration" where such issues are severable. (*Heritage Provider Network, Inc. v. Superior Court* (2008) 158 Cal.App.4th 1146, 1152-1153, citations omitted.)

Trial courts have some discretion to lift such a stay "only under circumstances in which lifting the stay would not frustrate the arbitrator's jurisdiction." (*MKJA, Inc. v. 123 Fit Franchising, LLC, supra*, 191 Cal.App.4th at p. 660.) Where an "issue which is the controversy subject to arbitration is severable, the stay may be with respect to that issue only." (Code Civ. Proc., § 1281.4.) Such severance is discretionary. (*Cook v. Superior Court of Los Angeles County* (1966) 240 Cal.App.2d 880, 885.)

At this time, the court is not inclined to lift the stay. Though, the court would note some concerns. This matter has been stayed pending arbitration for nearly two years. The court would hope that plaintiff has communicated to the arbitrator the urgency and potential prejudice that may occur to a defendant who is not a party to the arbitration should any further delays occur.

While the court is denying lifting the stay at this juncture, an earlier status conference will be scheduled. The court would be inclined to expeditiously entertain any relevant motion(s) immediately following the conclusion of the arbitration proceedings. As such, plaintiff is to keep defendant Bell's counsel apprised of the status of the arbitration proceedings.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/8/2026.
(Judge's initials) (Date)